

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1215

Introduced by McKinney, 11.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to political subdivisions; to adopt the
- 2 Political Subdivision Contracting Transparency Act.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 7 of this act shall be known and may be
2 cited as the Political Subdivision Contracting Transparency Act. The act
3 terminates on July 1, 2030. The act is race neutral and focused on
4 achieving equitable outcomes through process improvements.

5 **Sec. 2.** For purposes of the Political Subdivision Contracting
6 Transparency Act:

7 (1) Accepted invoice means a properly submitted invoice that meets
8 all contractual documentation requirements;

9 (2) Contracting agency means any political subdivision engaged in
10 procurement of goods, services, or construction;

11 (3) Mobilization micro-advance means a limited-purpose financing
12 tool designed to enable small or undercapitalized businesses to begin
13 work on awarded public contracts;

14 (4) Prime contractor means any person awarded a contract by a
15 contracting agency;

16 (5) Small business vendor means any business that meets the small-
17 business size standards established under 13 C.F.R. 121, including size
18 standards based on the North American Industry Classification System
19 incorporated by reference, or any applicable small-business size standard
20 adopted by a contracting agency consistent with state law;

21 (6) Solicitation means any request for bids, request for proposals,
22 request for qualifications, notice to contractors, or similar
23 announcement seeking vendor participation in a public contract; and

24 (7) Subcontractor means any person providing labor, materials, or
25 services under contract with a prime contractor.

26 **Sec. 3.** (1) A contracting agency shall remit full payment to a
27 prime contractor no later than thirty days after receipt of an accepted
28 invoice.

29 (2) A prime contractor shall remit full payment to all
30 subcontractors no later than seven days after receiving payment from the
31 contracting agency.

1 (3) Any unpaid amount shall accrue interest at the rate established
2 under section 45-103.

3 (4) Any contract clause that delays payment to subcontractors beyond
4 the timelines in this section is void as against public policy.

5 **Sec. 4.** (1) Upon request of any unsuccessful bidder, a contracting
6 agency shall provide a written or virtual postaward debrief within ten
7 business days after receipt of such request.

8 (2) The debrief shall include, at minimum:

9 (a) Evaluation criteria;

10 (b) Strengths and weaknesses of the bid;

11 (c) Aggregate scoring information; and

12 (d) Any compliance deficiencies affecting award determination.

13 (3) Nothing in this section shall require disclosure of proprietary
14 or confidential information submitted by any other bidder.

15 (4) A contracting agency may withhold a debrief only in cases
16 involving active litigation or state or federal security restrictions.

17 **Sec. 5.** (1) The Department of Administrative Services shall
18 establish a single, public-facing, searchable, online procurement
19 calendar listing each solicitation of fifty thousand dollars or more
20 issued by any contracting agency.

21 (2) Each contracting agency shall post every solicitation at least
22 fourteen days prior to the bid due date.

23 (3) The procurement calendar shall include:

24 (a) Scope of work;

25 (b) Pre-bid meeting details;

26 (c) Due dates;

27 (d) Contact information; and

28 (e) Award notifications.

29 (4) A contracting agency may post any solicitation on its website in
30 addition to the posting required under this section.

31 (5) A contracting agency that fails to comply with the posting

1 requirement of this section shall report such failure on or before
2 December 31 of the calendar year of such failure. Failure to comply with
3 this posting requirement does not invalidate a contract award.

4 (6) The Department of Administrative Services shall electronically
5 provide a report to the Urban Affairs Committee of the Legislature by
6 February that includes the information provided under this section in the
7 prior calendar year.

8 **Sec. 6.** (1) The Department of Economic Development, in consultation
9 with the Urban Affairs Committee of the Legislature, shall develop a
10 uniform small-business procurement readiness checklist for use by
11 contracting agencies.

12 (2) The checklist shall include:

13 (a) Required registrations;

14 (b) Insurance and bonding requirements;

15 (c) Compliance documentation;

16 (d) Bid-submission requirements;

17 (e) Project-readiness indicators; and

18 (f) Availability of a mobilization micro-advance.

19 (3) The checklist shall be made publicly available.

20 **Sec. 7.** The Urban Affairs Committee of the Legislature shall
21 conduct a performance review in 2029 and make recommendations regarding
22 continuation, modification, or expansion of the Political Subdivision
23 Contracting Transparency Act.